

Court No. - 34

Case :- WRIT - C No. - 8034 of 2019

Petitioner :- Bansidhar Dubey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar Rai, Mani Shankar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Santosh Kumar Rai, learned counsel for petitioner, Sri Mahboob Ahmad, learned counsel for respondents and perused the material available on record.

2. After some argument, learned counsel for petitioner did not dispute that petitioner has statutory alternative remedy of raising his grievance in respect of payment of electricity dues before Consumer Grievance Redressal Forum under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as "Code") read with UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as "Regulations, 2003") and thereafter, remedy is provided before Ombudsman under para 7.10(iv) of the Code read with Regulations, 2003. He also could not substantiate any argument so as not to relegate the petitioner to avail aforesaid alternative remedy.

3. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 8.3.2019

PS